

**NEW YORK SUPREME COURT
COUNTY OF NEW YORK**

People v. Luigi Nicholas Mangione
Ind. No. 75657/2024

December 11, 2025

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MRS. AGNIFILO: Your Honor, before we begin we would like an opportunity to make a record.

THE COURT: Regarding?

MRS. AGNIFILO: Regarding an evidentiary matter, there's been several, if now is a good time to bring it up?

THE COURT: Go ahead.

MRS. AGNIFILO: There's been several discussions up at the bench, we have objected to certain items of evidence being introduced but I'd like to make a record in court of some of those discussions and what the impact has been.

So I want to bring to the Court's attention specifically People's Exhibit 3A, this is an exhibit, a video that the People have uploaded to the media Dropbox account on Tuesday, December 9th. This exhibit was introduced into evidence on the first day of the hearing on December 1st, over the defense's objection. Despite having never been publicly released or played in court, the People provided this exhibit to the media on Tuesday.

Exhibit 3A consists of two hours and twenty-four minutes of highly sensitive CCTV footage depicting in graphic detail the December 4th crime scene. It was introduced alongside People's Exhibit 3B, which is a 50-second excerpt from 3A that had previously been released to the public by DCPI a year ago and was played in open court. Unlike 3B, Exhibit 3A had never and has never been publicly disseminated, never shown in this courtroom, and was not even referenced or discussed by a single witness who has testified including Sergeant McLaughlin from DCPI.

The defense objected to the introduction of People's Exhibit 3 as it was irrelevant and unduly prejudicial to Mr. Mangione and the People argued that the materials were relevant because they had been released through DCPI. That justification is demonstrably untrue with respect to Exhibit 3A. The rationale the People offered for 3B was that it was subsequently broadcast on FOX news. That does not apply to Exhibit 3A, which has no conceivable relevance to any suppression matter in this hearing.

The unreleased footage in Exhibit 3A contains more than two hours of graphic and sensitive content including the shooting itself, the victim lying on the ground, civilians interacting with law enforcement, police establishing a crime scene, CPR efforts on the decedent, and the decedent being loaded into an ambulance and there's other images, these and other images are things that the Manhattan DA's office has historically never released, particularly not during a suppression hearing. The irregularity of the People's conduct is further underscored by their decision not to redact civilian faces from Exhibit 3A, steps they've taken for other exhibits and throughout long-standing district attorney practice. Predictably, once uploaded, footage from this lengthy video immediately circulated across multiple media platforms, where portions of it has already been viewed by members of the public. For example, one social media posting has over 150,000 views and a social media posting by TMZ has over a million views.

Releasing this full, unredacted video served no law enforcement purpose at the time of the incident and played no role in locating the perpetrator, which explains why it was not released then. The only plausible reason for releasing it now, precisely on the anniversary of Mr. Mangione's arrest, is to influence public perception and materially prejudice Mr. Mangione. The People are plainly attempting to use the suppression hearing as a vehicle to litigate their case in the court of public opinion.

When the People introduced their exhibits, the transcript confirms that they referred only to People's Exhibit 3, never discussing 3A or referencing its contents in any examination of Sergeant McLaughlin or any other subsequent witness. The sole justification the People offered for Exhibit 3 was that it had been publicly released by the NYPD and aired by news outlet, including FOX news in Altoona which is only true of Exhibit 3B.

The People questioned the DCPI sergeant extensively about each publicly released photo and video and yet never once mentioned 3A. They elicited testimony that one of DCPI's major functions is to release images that will help locate a suspect. In contrast to the other exhibits introduced through this witness, the People elicited no testimony whatsoever regarding Exhibit 3A, nor did they play it in open court. There was, of course, no legitimate reason to do so and because it was never played or discussed in open Court, Exhibit 3A serves no First Amendment access purpose of balancing the public's right to know with the right of the defendant to a fair trial. Its release has only one effect and that's to prejudice Mr. Mangione before trial.

The People's introduction of this exhibit was also misleading. In questioning the witness about Exhibit 3, they repeatedly referred to "the video," not "the videos," and there were two videos. Both the People and the witness used the singular, and the witness's testimony clearly addressed only Exhibit 3B.

For example, beginning on page 17 of the transcript question, by the prosecution:

"Let's go to People's 3. Had you had occasion to look at People's 3?"

"ANSWER: I did."

"QUESTION: And was People's 3 obtained by the New York City Police Department?"

"ANSWER: Yes."

"QUESTION: Who obtained it?"

"ANSWER: Detective Diaz."

"QUESTION: Who is he with respect to this case?"

"ANSWER: He is assigned from Manhattan South Homicide."

The People then stated "I would like to now display the video." After the court overruled the defense objection at the time and the People played only Exhibit 3B and concluded their questioning. Again, they never mentioned 3A or referenced it in any way.

The witnesses called thus far by the People have instead corroborated the defendant's motion to suppress that Mr. Mangione was in custody within seconds of Altoona police arriving at McDonald's; that officers conducted a warrantless search of his belongings when he had absolutely no possibility of gaining control or immediate control of those items. And rather than confront these constitutional violations, the People are attempting to distract from a botched arrest and search by shaping the public narrative through selective and sensational release of evidence.

This sustained and deliberate effort to prejudice Mr. Mangione has real and irreversible consequences and in particular, your Honor, to the fact that he is facing the death penalty in a federal case, and that case is going on at the exact same time. In fact, we have a death penalty motion pending at this moment in front of Judge Garnett in federal court.

THE COURT: So, first of all, that video is not subject to this hearing. You got that right. But that is a video that would be, if played here, would have been released to the press and we deal with it like we're going to deal with all of what the press has gotten when we select a jury in this case, so I don't really see a problem with what has been released and, by the way, People what we have been discussing last night, you should release it.

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